IN THE HIGH COURT OF JUSTICE

BUSINESS AND PROPERTY COURTS OF ENGLAND AND WALES

COMMERCIAL COURT (KBD)

Claim No. CL-2025-000412

B E T W E E N :

BRACKEN GROUP PLC

Claimant

- and -

CALDERWOOD INDUSTRIES LIMITED

Defendant

ORDER

Costs and Case Management Conference

Before Mr Justice Harewood sitting in the Commercial Court

Made on 12 February 2026

UPON hearing leading counsel for the Claimant and counsel for the Defendant at a costs and case management conference

AND UPON the parties having filed and exchanged costs budgets, disclosure reports and an agreed List of Issues for Disclosure

AND UPON the parties having confirmed that they will consider alternative dispute resolution

IT IS ORDERED THAT:

1. **List of Issues for Disclosure.** The agreed List of Issues for Disclosure annexed to the parties' Disclosure Review Document is approved.

2. **Disclosure.** By 4pm on 27 March 2026 each party shall give Extended Disclosure under Practice Direction 57AD by Model C (request-led, search-based disclosure) in respect of the Issues for Disclosure set out in the approved List of Issues, and shall serve a Disclosure Certificate signed in accordance with the Practice Direction.

3. **Witness statements.** The parties shall exchange signed witness statements of fact, complying with Practice Direction 57AC and the Statement of Best Practice in its Appendix, by 4pm on 22 May 2026. No party may rely at trial on the factual evidence of any witness whose statement has not been served, save with permission.

4. **Expert evidence.** The parties have permission to rely on the written evidence of one forensic accountant each, limited to the issue of quantum. Reports shall be exchanged by 4pm on 17 July 2026; the experts shall meet, and shall prepare and file a joint statement identifying the issues on which they agree and disagree, by 4pm on 14 August 2026.

5. **Costs budgets.** The Claimant's costs budget is approved in the sum of £612,000 and the Defendant's costs budget is approved in the sum of £548,000, in each case as recorded in the Precedent H filed and the

Budget Discussion Report.

6. **Trial bundle and skeletons.** The Claimant shall file an indexed and paginated trial bundle not less than 7 days before the first day of trial. Skeleton arguments shall be exchanged and filed not less than 2 clear days before trial.

7. **Alternative dispute resolution.** At all stages the parties must consider settling this dispute by any means of alternative dispute resolution. Not less than 28 days before the pre-trial review, each party shall file and serve a witness statement confirming that ADR has been considered, and, where a party has declined to engage, giving its reasons.

8. **Pre-trial review.** A pre-trial review shall be listed in the week commencing 30 November 2026, with a time estimate of one hour, to be heard by the trial judge if available.

9. **Trial.** The matter shall be listed for trial in a window opening on 18 January 2027, with a time estimate of 5 days, before a Judge of the Commercial Court.

10. **Liberty to apply.** The parties have liberty to apply. Any application to vary this Order shall be made promptly and on notice.

11. **Costs.** The costs of and occasioned by this costs and case management conference shall be costs in the case.

Dated: 12 February 2026

BY THE COURT